

BEFORE THE
FEDERAL MARITIME COMMISSION

DOCKET NO. 24-14

AIRBOSS DEFENSE GROUP, LLC,
COMPLAINANT,

v.

FEDEX TRADE NETWORKS TRANSPORT & BROKERAGE, INC., MSC
MEDITERRANEAN SHIPPING COMPANY S.A. and MEDITERRANEAN SHIPPING
COMPANY (USA) INC., as agent for MSC Mediterranean Shipping Company S.A.
RESPONDENTS.

JOINT CLARIFICATION

Complainant AirBoss Defense Group, LLC (“ADG”) and Respondents FedEx Trade Networks Transport & Brokerage, Inc. (“FTN”) and MSC Mediterranean Shipping Company SA and Mediterranean Shipping Company (USA) Inc. as agent for MSC Mediterranean Shipping Company SA (jointly “MSC”), by their respective undersigned counsel, hereby submit this joint clarification.

Pursuant to the Presiding Officer’s May 1, 2025 Order Seeking Clarification, the parties to this proceeding jointly provide the following clarifications:

1. The Joint Settlement includes Mediterranean Shipping Company (USA), Inc. The release set forth in Paragraph 2(a) of the settlement expressly includes the agents of the parties. Mediterranean Shipping Company (USA), Inc. is the agent of MSC Mediterranean Shipping Company S.A. Accordingly, by the terms of the Joint Settlement, that agreement covers the agent.

For the avoidance of doubt, the parties hereby confirm it is the intent of each of them that the Joint Settlement fully and finally resolve all issues among the parties to the FMC proceeding and

result in the dismissal with prejudice of the complaint in this proceeding.

2. The individual who signed the agreement on behalf of MSC Mediterranean Shipping Company S.A. is Paolo Magnani. Mr. Magnani is Executive Vice President Marketing & Legal for Mediterranean Shipping Company (USA), Inc. In his capacity as Executive Vice President of the general agent of MSC Mediterranean Shipping Company S.A., Mr. Magnani is duly authorized to execute agreements of this type on behalf of the principal.

Dated: May 5, 2025

Respectfully submitted,

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